

SENATE BILL 240

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 14, relative to organized retail crime.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-14-113(c)(1), is amended by deleting "aggregated over a ninety-day period" and substituting "aggregated over a one-hundred-eighty-day period".

SECTION 2. Tennessee Code Annotated, Section 39-14-113(c), is amended by adding the following as new subdivisions:

(3) Knowingly removes, destroys, deactivates, or evades any component of an anti-shoplifting or inventory control device to prevent the activation of that device or to facilitate the commission of an offense under this subsection (c);

(4) Knowingly activates or interferes with a fire alarm system during the commission of an offense under this subsection (c) or to facilitate the commission of an offense under this subsection (c);

(5) Knowingly uses an online marketplace or a social media platform to coordinate a meeting with one (1) or more individuals to sell, barter, or trade stolen merchandise for monetary or other gain;

(6) Knowingly returns stolen merchandise or counterfeit merchandise to a retail merchant;

(7) Receives, purchases, or possesses retail merchandise for the purpose of sale or resale knowing or believing the merchandise to be stolen from a merchant;

(8) Knowingly uses any artifice, instrument, container, device, or other article to facilitate the commission of an offense under this subsection (c);

(9) Knowingly uses a device or apparatus, including, but not limited to, a device or apparatus that can be affixed to point-of-sale terminals, automated teller machines, fuel pumps, and other payment processing devices, unlawfully to capture, record, or transmit the electronic information contained on the magnetic strip or embedded chip of a credit card, debit card, or other payment device with the intent to defraud another; or

(10) Knowingly possesses, controls, or has custody of ten (10) or more fraudulently obtained access devices, including gift cards, with the intent to defraud another. As used in this subdivision (c)(10), "access devices" means any card, plate, code, account number, electronic serial number, mobile identification number, personal identification number, or other means of account access that can be used, alone or in conjunction with another access device, to obtain money, goods, services, or other thing of value, whether the device is physical or digital.

SECTION 3. Tennessee Code Annotated, Section 39-14-113(d), is amended by adding the following as a new subdivision:

(3) A violation of subsection (c) is punished one (1) classification higher than provided in § 39-14-105 if the defendant engages in the destruction of property or uses a weapon during the commission of the offense.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.